

17. 9:00 AM CASE NUMBER: MSC21-00549  
CASE NAME: ON DECK CAPITAL VS. RUDNICK  
\*HEARING ON MOTION IN RE: JUDGMENT  
FILED BY: ON DECK CAPITAL, INC., A DELAWARE CORPORATION  
\*TENTATIVE RULING:\*

**Granted.** The moving papers establish adequate grounds. There is no opposition.

18. 9:00 AM CASE NUMBER: MSC21-00624  
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC  
HEARING IN RE: COMPLIANCE  
FILED BY:  
\*TENTATIVE RULING:\*

Continued to July 23, 2026, pursuant to stipulation and order entered December 1, 2025.

19. 9:00 AM CASE NUMBER: MSC21-01298  
CASE NAME: MARIO R LOPEZ VS. ELECTRIC TECH CONSTRUCTION  
\*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL  
FILED BY:  
\*TENTATIVE RULING:\*

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

20. 9:00 AM CASE NUMBER: MSC21-02630  
CASE NAME: STATE FARM GENERAL VS BMW OF NORTH AMERICA  
\*HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL AND TO TAX COSTS;  
MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF REBEKKA R. MARTORANO  
FILED BY: BMW OF NORTH AMERICA, LLC  
\*TENTATIVE RULING:\*

Defendants move to stay this action pending appeal, or in the alternative to tax plaintiffs' costs. Plaintiffs prevailed at trial and defendants have appealed. The matter is stayed pending appeal pursuant to Code of Civil Procedure sections 916 through 919, except that "the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Plaintiffs waived an undertaking for appeal of the judgment.) The only matters in question at this point are plaintiffs' cost bill and defendants' motion to tax costs, which arguably fall within the exception to the automatic stay. Defendants ask that the action be stayed, so they do not have to unnecessarily litigate the costs issues in the event they prevail in their underlying appeal. Plaintiffs do not expressly oppose the request. The costs issue involves not simply the reasonableness of costs, but contested issues concerning the proper application of offers to compromise under Code of Civil Procedure section 998. All things considered, it is better not to litigate that issue unless made necessary by the ultimate decision on appeal. The motion to stay is **granted**.

21. 9:00 AM CASE NUMBER: MSC22-00243